

the rents or profits of lands are enabled, by the 24th section, to apply for and make, in conformity with the provisions of the Act, the several improvements mentioned in the 9th section, such as drainage, reclamation of land, erection of farm buildings, planting, &c.

14. **Cutting timber.**—Where an estate was devised to A. and his heirs upon trust to settle on B. for life, subject to impeachment of waste, remainder to C. for life, without impeachment of waste, remainder to C.'s first and other sons in tail, and before any settlement was executed the trustee, with the concurrence of B. and C., cut down timber which showed symptoms of decay, Sir L. Shadwell said "he considered the timber to have been cut by the authority of [*578] the trustee, who *had a superintending control over the estate; that it was not a wrongful act; and that the effect of it must be the same as if it had been done with the sanction of the Court" (a). And in a later case (b) the Court seemed to think that a tenant for life, impeachable for waste, would not be chargeable with interest during his own life as to such timber felled by him as the Court would have ordered to be cut, but that the *onus* would be on the tenant for life to make out that such was the case.

[15. **Settled Land Act.**—Now by the Settled Land Act, 1882, sect. 35, a tenant for life impeachable for waste may, with the consent of the trustees of the settlement or an order of the Court, cut and sell timber ripe and fit for cutting, but three-fourth parts of the net proceeds of the sale are to be set aside as capital money arising under the Act.

16. **Management of land and receipt and application of income during minority.**—In the case of instruments com-

other works of a permanent character for the supply of water; and by the Settled Land Act, 1882, s. 30, to all improvements authorised by that Act, see sect. 25. In *Re Dunn's Settled Estate*, W. N. 1877, p. 39, it was held that the sum to be charged under 33 & 34 Vict. c. 56, was not confined to two years' rental of the particular estate on which the mansion was to

be built, but extended to two years' rental of all the estates comprised in the settlement.]

(a) *Waldo v. Waldo*, 7 Sim. 261; and see *Gent v. Harrison*, Johns. 517; *Earl Cowley v. Wellesley*, 1 L. R. Eq. 656.

(b) *Bagot v. Bagot*, 2 New Rep. 297.